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Professor Constantin Stefanou and Professor Helen Xanthaki
Editors-in-Chief, *Statute Law Review*
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Dear Professor Stefanou and Professor Xanthaki,

I am submitting for your consideration an article entitled *What Counts as an Establishment? Definitional Fragmentation Across Saudi Arabian Legislation*.

The article addresses a question that the drafting literature has long discussed through examples and never measured: how far a legal system actually achieves consistency in the terms its statutes define. It does so for Saudi Arabia, using a machine-readable corpus of 290 legislative instruments in which every definitions article has been parsed into term–definition pairs — 1,920 distinct terms carrying 3,318 definitions.

Its argument is deliberately deflationary. Measured automatically, 61.5 per cent of the substantive terms that more than one instrument defines are worded divergently, and a study reporting that figure would look like a finding of pervasive incoherence. The article argues that it is not one, and that two separations are needed before any such number means anything: one between definitions that name a particular instrument or organ of state — which cannot conflict with each other — and definitions that describe a class; and one between divergence in wording and divergence in law. Reading the twelve most widely shared terms across every instrument that defines them leaves four genuine conflicts. The clearest is the one in the title: a sole trader with no employees is an *establishment* under the Competition Law and is not one under the Labour Law.

I hope it is of interest on three grounds. It brings quantitative evidence to a question the drafting literature has had to argue from anecdote. It concerns a jurisdiction with no general interpretation statute, which makes it the untreated case against which the Commonwealth interpretation acts can be assessed — and the article sets out which of the four conflicts such an instrument would and would not resolve. And it proposes three responses of ascending ambition, the least of which requires no legislation at all.

The manuscript is approximately 8,061 words including footnotes. It is not under consideration elsewhere. Two companion manuscripts drawing on the same corpus are under review at other journals — one describing the corpus as a research resource, one analysing its citation network — and neither overlaps with this article's contribution; both are disclosed on the title page. The corpus and the analysis code that reproduces every number and figure in the article are openly archived with a citable DOI, and the manuscript has been anonymised for review, with the identifying material confined to the separate title page.

Yours faithfully,

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